

STATE OF NEW YORK

5210--A

2025-2026 Regular Sessions

IN SENATE

February 19, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Veterans, Homeland Security and Military Affairs -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the military law, in relation to providing for reimbursement for certain insurance premiums for certain members of the naval militia, New York air, army national guard, and New York guard

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 210 of the military law is amended by adding a new
2 subdivision 10 to read as follows:

3 10. a. Notwithstanding any provision of law to the contrary, any New
4 York resident member of the naval militia, New York air, army national
5 guard, and New York guard who, when activated pursuant to a call of the
6 governor of this state or any other state as provided for by law, shall
7 be reimbursed by the state for premiums associated with any individual
8 or group health insurance policy, including benefits pursuant to chapter
9 55 of part II of subtitle A of title X, 10 U.S.C §§ 1071-1110(b),
10 commonly known as TRICARE, of which the naval militia, New York air,
11 army national guard, and New York guard member is a policy owner or
12 beneficiary.

13 b. Such reimbursement shall equal one-thirtieth the amount of a naval
14 militia, New York air, army national guard, and New York guard member's
15 monthly premium for each day of service.

16 c. The state shall not be responsible for the procurement of health
17 insurance policies on behalf of members of the naval militia, New York
18 air, army national guard, and New York guard.

19 d. Premiums reimbursed for the provision of service members' health
20 insurance shall be paid only to provide coverage that is not paid for or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 reimbursed by any other governmental entity. In no event shall a service
2 member who declines health insurance be entitled to any direct payment
3 pursuant to the terms of this section.

4 e. The adjutant general shall, in consultation with the state comp-
5 troller, promulgate rules and regulations necessary to implement the
6 provisions of this subdivision.

7 § 2. This act shall take effect immediately.